

Act, and such thing is in relation to any property so transferred, such thing may be carried on and completed by or under the direction of the Forestry Commissioners or the other Government department, as the case may be.

4. Where at the time of the transfer of any property under this Act any proceedings are pending to which any other Government department or the Forestry Commissioners are a party, and such proceedings have reference to property transferred under this Act, the Forestry Commissioners or the other Government department shall be substituted in any such proceeding for the other Government department or the Forestry Commissioners, and such proceedings shall not abate by reason of the substitution.

5. Where any property is transferred under this Act, or where any transfer under this Act is made subject to any exception or reservation, such provision may be made by Order in Council as to the rights, powers and liabilities of the Forestry Commissioners and the other Government department respectively in relation to the property in question or in relation to such exception or reservation as may appear necessary or expedient.

CHAPTER 22.

An Act to provide for the collection of a contribution by cotton spinners in Great Britain to the funds of the Empire Cotton Growing Corporation; and for other matters relating to the Cotton Industry. [18th July 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Definitions.

1. In this Act the words following shall have the following meanings:—

“The Corporation” shall mean the Empire Cotton Growing Corporation;

“Cotton” shall mean raw cotton which has not passed through any process of manufacture and which is in a state suitable for spinning by a cotton spinner ;

“Cotton spinner” shall mean any corporation, firm, or person carrying on in Great Britain the business of spinning cotton into yarn ;

“Gross weight” shall mean the weight of any bale or parcel of cotton before deducting the weight of draft bands and tares ;

“Invoice” shall include any account note or memorandum showing the sum payable in respect of the purchase of cotton or for the sale of cotton to a cotton spinner.

2.—(1) Subject to the provisions of this Act, there shall be paid to the Corporation by every cotton spinner in respect of every purchase of cotton made by him a contribution at the rate of sixpence for every five hundred pounds gross weight or portion thereof of the cotton so purchased. The amount of the said contribution may be treated by the cotton spinner as an addition to the cost of the cotton and shall be recoverable by the Corporation from the cotton spinner as if the same were a contract debt due by the cotton spinner to the Corporation and payable on the date on which payment becomes due for the cotton in respect of which the contribution is payable.

Contribu-
tions by
cotton
spinners.

(2) If any cotton spinner proves to the satisfaction of the Corporation that any cotton in respect of which a contribution has been paid by him under this Act has been used in Great Britain for some purpose other than spinning into yarn, or has been finally removed from Great Britain without having been spun into yarn, the Corporation shall on demand refund to him the amount of the contribution so paid.

(3) Every cotton spinner shall from time to time, on being so required by notice in writing given by the Corporation, render to the Corporation within the time specified in the notice, not being less than thirty days from the date on which the notice is given, such full and accurate accounts as are necessary to show the amounts

from time to time payable by him by way of contributions under this Act, and if any cotton spinner fails to comply with the requirements of any such notice within the time therein specified, he shall be liable on summary conviction to a fine not exceeding ten pounds for every day during which the default continues, and any fine imposed under this section shall be payable to the Corporation :

Provided that proceedings for the recovery of any such fine shall not be brought except by the Corporation.

Provisions
as to collec-
tion of con-
tributions.

3. The Corporation may make arrangements with the Liverpool Cotton Association, Limited, and the Manchester Cotton Association, Limited, and with any other body or any of them, for the collection of the said contribution by the members of such association or body by adding the amount of the contribution to invoices rendered by the members of any such association to any cotton spinner in respect of any cotton sold to or bought for account of a cotton spinner, and the payment by any cotton spinner to any member of such an association with whom such an arrangement has been made shall be a good discharge to the cotton spinner, and thereafter the remedy of the Corporation shall be against the person to whom such payment has been made by the cotton spinner.

Repeal of
31 & 32 Vict.
c. 33.

4. The Cotton Statistics Act, 1868 (which relates to the collection and publication of statistical information respecting stocks and the importation and exportation of cotton), shall cease to have effect.

Short title
and duration

5. This Act may be cited as the Cotton Industry Act, 1923, and sections one to three of this Act both inclusive shall remain in force for a period of five years from the commencement of this Act and no longer.

